

****24.05.2022****

****Fine for Violation of GDPR****

The National Supervisory Authority completed an investigation in April 2022 regarding the operator MEDLIFE S.A. and found violations of the provisions of Article 32 paragraph (1) letter b), paragraph (2), and paragraph (4) of the General Data Protection Regulation (GDPR).

The operator MEDLIFE S.A. was fined in the amount of 24,721.50 lei, equivalent to 5000 EURO.

The investigation was initiated following a complaint regarding a possible violation of GDPR provisions, as a result of a natural person identifying documents containing personal data, including sensitive data, discarded in a trash bin of a local administrative unit.

The documents attached to the complaint contained personal data of clients/patients of MEDLIFE S.A. During the investigation, it was found that the operator MEDLIFE S.A. had not implemented adequate technical and organizational measures to ensure an appropriate level of confidentiality and security corresponding to the risk presented by the processing, which led to the illicit access or disclosure of personal data of its clients (name, surname, personal identification number, medical service received, medical analysis performed, amount paid, bank account) and its employees (salary advance) during the period from July 2020 to August 2020. Although the operator was obligated to take measures to ensure that any natural person acting under its authority and having access to personal data only processes them at the request of the operator, it was found that it had not taken the necessary measures, thus violating the provisions of Article 32 paragraph (1) letter b), paragraph (2), and paragraph (4) of Regulation (EU) 2016/679.

At the same time, during the investigation, the operator MEDLIFE S.A. was also subjected to a corrective measure consisting of reviewing and updating the technical and organizational measures implemented, including the working procedures related to the protection of personal data, as well as implementing measures regarding the periodic training of individuals acting under its authority, including regarding the risks associated with the processing of personal data.

****Legal and Communication Department****

****N.S.A.P.D.C.P****